

GORSUCH, J., dissenting

stitution promises all Americans that they will never suffer double jeopardy. I would enforce that guarantee.

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“Fear and abhorrence of governmental power to try people twice for the same conduct is one of the oldest ideas found in western civilization.”¹ Throughout history, people have worried about the vast disparity of power between governments and individuals, the capacity of the state to bring charges repeatedly until it wins the result it wants, and what little would be left of human liberty if that power remained unchecked. To address the problem, the law in ancient Athens held that “[a] man could not be tried twice for the same offense.”² The Roman Republic and Empire incorporated a form of double jeopardy protection in their laws.³ The Old Testament and later church teachings endorsed the bar against double jeopardy too.⁴ And from the earliest days of the common law, courts recognized that to “punish a man twice over for one offence” would be deeply unjust.⁵

The rule against double jeopardy was firmly entrenched in both the American Colonies and England at the time of our Revolution.⁶ And the Fifth Amendment, which prohibits placing a defendant “twice . . . in jeopardy of life or limb”

¹ *Bartkus v. Illinois*, 359 U. S. 121, 151 (1959) (Black, J., dissenting).

² R. Bonner, *Lawyers and Litigants in Ancient Athens* 195 (1927).

³ J. Sigler, *Double Jeopardy: The Development of a Legal and Social Policy* 2–3 (1969); *Digest of Justinian: Digest 48.2.7.2*, translated in 11 S. Scott, *The Civil Law* 17 (1932).

⁴ See *Bartkus*, 359 U. S., at 152, n. 4 (Black, J., dissenting); Z. Brooke, *The English Church and the Papacy* 204–205, n. 1 (1931).

⁵ 1 F. Pollock & F. Maitland, *The History of English Law* 448 (2d ed. 1898).

⁶ See, e. g., *The Body of Liberties of 1641*, cl. 42, in *The Colonial Laws of Massachusetts* 42–43 (W. Whitmore ed. 1889); 4 W. Blackstone, *Commentaries on the Laws of England* 335–336 (5th ed. 1773) (Blackstone, *Commentaries*); 2 W. Hawkins, *Pleas of the Crown* 368 (1762) (Hawkins).